

## 25STCV14783 25STCV14783

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-08-28

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Case Number: 25STCV14783 Hearing Date: August 28, 2026 Dept: 11

Alfaro

(25STCV14783)

Tentative Ruling Re: Class-Waiver

Issue

Date: 8/28/26

Time: 11:00 am

Moving

Party: H&H Group, LLC

("H&H")

Opposing

Party: Mercedes Alfaro

("Plaintiff")

Department: 11

Judge: Bruce Iwasaki

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### TENTATIVE RULING

H&H's evidentiary objections are overruled in part (objection numbers 1, 2, 4, 5, 8, 9, 11, 12, and 13) and sustained in part

(objection numbers 3, 6, 7, and 10).

The class waiver in the H&H arbitration agreement is enforceable.

The class claims are stricken.

## BACKGROUND

This is a putative class action. A staffing agency named Extra Mile Staffing 1, Inc. ("Extra Mile") placed Plaintiff to work at a warehouse facility managed by H&H. Plaintiff alleges that Extra Mile and H&H jointly employed her and other current and former employees and subjected them to multiple wage-and-hour violations.

On June 10, 2026, the Court heard H&H's motion to compel arbitration. H&H moved pursuant to both the H&H arbitration agreement and the Extra Mile arbitration agreement. The Court granted the motion to compel but ordered supplemental briefing regarding class waiver. (See 6/10/26 Minute Order, pp. 1-9.)

Here, the Court considers the supplemental briefs.

## DISCUSSION

When the Federal Arbitration Act ("FAA") applies, class waivers are enforceable. (See, e.g., *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 359-360 [finding that the FAA preempts "a state's refusal to enforce [] a [class] waiver on grounds of public policy or unconscionability"].)

The H&H agreement contains a class waiver. (See Supp. Carrandi Decl., Ex. 3, p. 2.)

So does the Extra Mile agreement. (See *id.* at Ex. 4, p. 1.)

The issue is

whether the FAA controls.

“The FAA was enacted in 1925 . . . and then reenacted and codified in 1947 as Title 9 of the United States Code. . . .

[I]ts ‘purpose was to reverse the longstanding judicial hostility to arbitration agreements that had existed at English common law and had been adopted by American courts, and to place arbitration agreements on the same footing as other contracts.’” [Citations.] The FAA stands as “a congressional declaration of a liberal federal policy favoring arbitration agreements, notwithstanding any state substantive or procedural policies to the contrary.” [Citations.]

“Section 2, the primary substantive provision of the FAA, provides: ‘A written provision in any . . . contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising ... shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.’” [Citation.] For purposes of section 2, the “word ‘involving’ is broad and is indeed the functional equivalent of ‘affecting,’” which “signals Congress’ intent to exercise its Commerce Clause powers to the full.” [Citations.] Therefore, the FAA’s “reach is expansive and coincides with that of the commerce clause.” [Citations.] “Employment contracts, except for those covering workers” specifically exempted by the statute, “are covered by the FAA.” [Citation.]

(Evenskaas v. California Transit, Inc. (2022) 81 Cal.App.5th 285, 291-292, emphasis added.)

Section 2 is met if the agreement’s wording says the FAA applies or if “the underlying contract facilitates interstate commercial transactions or directly or indirectly affects commerce between states.” (Knight, Cal. Practice Guide: Alternative Dispute Resolution (The Rutter Group 2026) ¶ 5:50.2, emphasis in original.)

The Court finds H&H’s showing adequate. For the H&H agreement, H&H demonstrates that its business operations and Plaintiff’s

work had at least an indirect affect on interstate commerce. (See Burley Decl., ¶¶ 3-10.) For the Extra Mile agreement, H&H notes

that the agreement plainly states that “[t]he Federal Arbitration Act shall govern the interpretation and enforceability of this Agreement.” (Supp.

Carrandi Decl., Ex. 4, p. 2.) These

facts and words suffice to satisfy section 2.

Nevertheless,

Plaintiff relies on the transportation-worker exemption. (See Supp. Opposition, pp. 2-5.) The exemption is found in section 1. (See Evenskaas, supra,

81 Cal.App.5th at 296 n.4 [explaining that section 1 “ha[s] a more

limited reach”].) It “exempts . . . ‘contracts of employment of

seamen, railroad employees, or any other class of workers engaged in foreign

or interstate commerce[]” – i.e., transportation workers – “from

the statute’s ambit[.]” (Southwest

Airlines Co. v. Saxon (2022) 596 U.S. 450, 454, emphasis added.)

The burden to

establish the exemption belongs to the party opposing arbitration. (See

Performance Team Freight Systems, Inc. v. Aleman (2015) 241 Cal.App.4th

1233, 1241.) He or she must show that the agreement is “both a ‘contract of employment’ and one

entered into with a ‘worker’ of the type described in” section 1. (Amos v. Amazon Logistics, Inc. (4th

Cir. 2023) 74 F.4th 591, 596].)

Plaintiff fails to meet her

burden. She does not address the first

element (contract of employment). (See

Supp. Opposition, pp. 2-8.) More

importantly, the H&H agreement explicitly states that it “is not, and shall not be construed to create, any

employment contract, express or implied.” (Supp.

Carrandi Decl., Ex. 3, p. 4, emphasis added.)

Thus:

\* the FAA

applies;

\* the

transportation-worker exemption does not apply;

\* the H&H

agreement's class waiver is enforceable; and

\* the class

claims must be stricken.[1]

[1] The Court declines to analyze the

second element (transportation worker) and Plaintiff's arguments concerning the

Gentry rule. (See Supp.

Opposition, pp. 8-11 [discussing Gentry v. Superior Court (2007) 42 Cal.4th 443].)